UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF OKLAHOMA

(1)	BARBARA BARRICK, as Special Administrator of the ESTATE OF BOBBY DALE BARRICK, deceased, Plaintiff,	)
	v.	)
(2)	BOARD OF COUNTY COMMISSIONERS OF McCURTAIN COUNTY, OKLAHOMA,	) Case No. CIV-23-129-GLJ
(3)	McCURTAIN COUNTY SHERIFF KEVIN CLARDY,	) **JURY TRIAL DEMANDED**
(4)	DEPUTY MATTHEW KASBAUM,	) **ATTORNEY LIEN CLAIMED**
(5)	DEPUTY QUENTIN LEE,	)
(6)	DEPUTY KEVIN STOREY, and	)
(7)	WARDEN MARK HANNAH, Defendants.	)

COMPLAINT

Plaintiff Barbara Barrick ("Plaintiff"), as Special Administrator of the Estate of Bobby Dale Barrick ("Barrick" or "Decedent"), hereby brings the following causes of action against Defendants Board of County Commissioners of McCurtain County, Oklahoma ("BOCC"), McCurtain County Sheriff Kevin Clardy ("Clardy"), Deputy Matthew Kasbaum ("Kasbaum"), Deputy Quentin Lee ("Lee"), Deputy Kevin Story ("Story"), and Warden Mark Hannah ("Hannah," collectively "Defendants"), and alleges as follows:

PARTIES, JURISDICTION & VENUE

Barbara Barrick (Special Administrator of the Estate of Bobby Dale Barrick)

1. Plaintiff Barbara Barrick is the wife of Bobby Dale Barrick, now deceased, and a resident of Tulsa County, Oklahoma.

2. On March 30, 2022, in Tulsa County District Court Case No. PB-2022-327, Plaintiff was appointed as Special Administrator of the Estate of Bobby Dale Barrick (the "Estate") and was granted Letters of Special Administration authorizing her, *inter alia*, to prosecute the instant lawsuit.

Board of County Commissioners of McCurtain County, Oklahoma

3. The Board of County Commissioners of McCurtain County, Oklahoma ("BOCC") is the chief administrative body for McCurtain County ("County"), a political subdivision of the State of Oklahoma. BOCC's principal place of business is located in the City of Idabel, the county seat of McCurtain County, Oklahoma.

4. BOCC is obligated to conduct itself in a constitutional manner with respect to any action it takes and/or responsibility it discharges through the personnel of the McCurtain County Sheriff ("MCS").

5. At all times during the arrest of Decedent on March 13, 2022, which ended Decedent's death, the County was responsible, *inter alia*, for preventing MCS deputies from using constitutionally excessive force upon Decedent, and for ensuring that any MCS deputies who were present for and/or participated in the arrest of Decedent took reasonable steps to protect Decedent from being subjected to constitutionally unreasonable/excessive force at the hands of any other law enforcement personnel.

6. At all times relevant hereto, the County was responsible, *inter alia*, for supervising MCS's creation and implementation of appropriate and lawful use of force policies and practices, and for ensuring that MCS was properly trained and supervising its deputies and other personnel in such regard.

7. Pursuant to the prior rulings of this Court, BOCC is properly named in this lawsuit.

8. For example, in *Lynch v. Bd. of County Comm'rs of Muskogee Co.*, U.S. Dist. Ct. (E.D.Okla.) Case No. 16-CV-247-JHP, this Court held:

> [T]he sufficiency of any allegations against Muskogee BOCC are subject to the same analysis as if the allegations had been made against the Muskogee County Sheriff in his official capacity. *See Gilbreath v. Cleveland Co. Bd. of Co. Comm'rs*, 2012 WL 2683133 *8 (W.D.Okla.) (holding that "the sufficiency of the allegations against the [county sheriff] in his official capacity is subject to the same analysis as applicable to the Board [of County Commissioners]," and denying motion to dismiss § 1983 claim "based on an unconstitutional policy or practice"); *citing Dodds v. Richardson*, 614 F.3d 1185, 1202 (10th Cir. 2010); *Moran v. Unknown Nurse #1*, 2015 WL 9593622 *1 (N.D.Okla.) (holding "a suit against the sheriff in his official capacity is the same as naming the county").

In its Motion, Muskogee BOCC argues that "in order for Plaintiffs to prevail on their § 1983 claims against the Board, they must show that an official policy or established custom of the Board caused the alleged constitutional rights violation." In *Du Bois v. Board of County Comm'rs of Mayes Co., Okla.*, 2014 WL 4810332 (N.D. Okla.), however, the court rejected the same argument now made by Muskogee BOCC, holding:

> This Court's reading of *Meade* does not support BOCC's argument [that it is not a proper party to be sued under § 1983] because the facts in *Meade* are different than those presented here. In *Meade*, the plaintiff did not name the board of county commissioners, but named three individual county commissioners as defendants. The plaintiff sought to hold the sheriff and those commissioners liable in their individual capacities under a theory of supervisory liability. In analyzing those claims, the Tenth Circuit held that, while the sheriff could be held individually liable in his supervisory capacity on the evidence presented, the commissioners could not be held liable for the deputies' alleged use of excessive force, because the board of county commissioners had no duty under Oklahoma law to hire, train, supervise, or discipline the county sheriffs or their deputies. In short, because the commissioners acting on the board had no responsibility for supervising and training deputies in the use of force, the commissioners could not be held liable **individually** under a supervisor liability theory.

While *Meade* would generally preclude a plaintiff from suing commissioners in their individual capacities for actions of sheriff's deputies, the court's holding in that case does not preclude a plaintiff from bringing a § 1983 municipal liability action against a county. This reading of *Meade* is plain on its face and is consistent with the numerous Supreme Court and Tenth Circuit decisions that treat § 1983 official capacity claims and claims against a county, in the name of its board of county commissioners, as suits against the county. Both types of suits

are analyzed under the *Monell* framework, which requires the existence of a county policy that was the moving force behind a violation of federal rights.

The Court acknowledges that some state and federal decisions in Oklahoma have indicated that a board of county commissioners is not a proper defendant with respect to allegations against a county sheriff on civil rights claims arising out of incidents at a county jail. These cases rely in part upon *Meade* which, as noted, involved a suit against individual commissioners, as opposed to claims against a county, sued in the name of the board.

In addition, the Court does not believe the foregoing authorities – which rely in part upon … an extension of *Meade* that appears inconsistent with its actual holding – can be reconciled with other decisions of the Tenth Circuit and the Supreme Court, which plainly establish that a policy of a county sheriff in his final policymaking capacity is a county policy, such that a county may be sued under § 1983 so long as such policy was the moving force behind a constitutional violation. *Id.* at *6-7 (emphasis in original; internal citations omitted). Muskogee BOCC has itself admitted that "the Sheriff's Department does not enjoy a separate legal existence from Muskogee County."

Here, Plaintiffs' § 1983 claims implicate Muskogee County because they deal, in part, with the unconstitutional policies and practices of the Muskogee County Sheriff – a county official with "final policymaking authority." Therefore, the Court finds that it was statutorily proper for Plaintiffs to name Muskogee BOCC as a defendant, and that dismissal under FED.R.CIV.P. 12(b)(6) based on an "improper party" argument would be inappropriate. *See* 19 O.S. § 4 (providing that "[i]n all suits or proceedings … against a county, the name in which a county shall … be sued shall be, 'Board of County Commissioners of the County of __'"); *DuBois*, 2014 WL 4810332 at **6-7 (holding that "[u]nder Oklahoma law, claims against a county must be brought by naming the board of county commissioners of that county"). *See Order* [Dkt. #60] in Case No. 16-CV-247-JHP (E.D. Okla., March 31, 2017), pp. 4-6 (emphasis added).

McCurtain County Sheriff Kevin Clardy

9. Defendant Kevin Clardy is a resident of McCurtain County, Oklahoma. Since 2016, Clardy has held the position of McCurtain County Sheriff.

10. At all times relevant to the claims asserted herein, Clardy was acting under color of state law.

11. Plaintiff's claims for relief in this Complaint are brought against Clardy in his official capacity as McCurtain County Sheriff.

12. "A claim against a government actor in his official capacity is essentially another way of pleading an action against the county … he represents." *Revilla v. Glanz*, 7 F.Supp.3d 1207, 1217 (N.D.Okla. 2014).

13. Thus, naming McCurtain County Sheriff Kevin Clardy in his official capacity in this action is the functional equivalent of suing McCurtain County. *Id.*; *Moran v. Unknown Nurse #1*, 2015 WL 9593622 *1 (N.D.Okla.) (holding "a suit against the sheriff in his official capacity is the same as naming the county"); *Lynch v. Bd. of County Comm'rs of Muskogee Co.*, U.S. Dist. Ct. (E.D.Okla.) Case No. 16-CV-247-JHP, Dkt. #22, p. 9 (in which the Board of County Commissioners of Muskogee County expressly conceded that the Muskogee County Sheriff "does not enjoy a separate legal existence from Muskogee County").

14. McCurtain County "may be held liable for an act it has officially sanctioned, or for the actions of an official with final policymaking authority." *Revilla v. Glanz*, 7 F.Supp.3d 1207, 1217 (N.D.Okla. 2014). *See also Lynch v. Bd. of County Comm'rs of Muskogee Co.*, U.S. Dist. Ct. (E.D.Okla.) Case No. 16-CV-247-JHP, Dkt. #60, p. 3.

15. As McCurtain County Sheriff, Clardy is a county "official with final policymaking authority." *See id.* at 1218; *Randle v. City of Aurora*, 69 F.3d 441, 448 (10th Cir. 1995).

16. Additionally, Clardy serves as Chairman of the McCurtain County Jail Trust Board of Trustees and, according to the official McCurtain County web page, "[h]as [the] power

and authority to operate the County Jail." *See* https://mccurtain.okcounties.org/offices/county-sheriff.

17. As reported in the McCurtain Gazette on or about December 2, 2021:

> In the recent interview, when asked about the jail trust, [McCurtain County Sheriff Kevin Clardy] said, by state law, the jail trust only manages financial aspects of the jail, [and] the sheriff does everything else.
>
> "State law states the sheriff has full control of the jail and its employees. That's state law, but the jail trust is over all financial aspects of the jail," Clardy said.
>
> "The jail trust is set up, in my opinion, not the way state law says it should be, but the way it went into effect by the vote of the people. The jail trust is over financial actions of the jail. It's set up that way. Always has been since 1998 when it went into effect."

18. The type of constitutional violations giving rise to Plaintiff's claims were a widespread and continuing problem at any agency or entity operated by, and/or under the authority of, McCurtain County Sheriff Kevin Clardy, including the McCurtain County Sheriff's Office and the McCurtain County Jail.

Matthew Kasbaum

19. Defendant Matthew Kasbaum is, upon information and belief, a resident of McCurtain County, Oklahoma.

20. At all times relevant hereto, Kasbaum worked at MCS, held the position of Deputy, and carried out the duties of such position (in whole or in part) at MCS.

21. At all times relevant hereto, Kasbaum was acting under color of state law.

[Paragraphs 22 to 87 are not transcribed in this sample.]

22. At the time Defendants Kasbaum, Lee, Storey, and Hannah used excessive physical force on Barrick, there was no need for the application of such force.

23. At the time Defendants Kasbaum, Lee, Storey, and Hannah used excessive physical force on Plaintiff, the threat to Defendants' safety posed by Plaintiff was minimal or nonexistent.

24. At the time Defendants Kasbaum, Lee, Storey, and Hannah used excessive physical force on Plaintiff, Defendants did not reasonably perceive Plaintiff as posing some threat warranting the application of force.

25. Defendants Kasbaum, Lee, Storey, and Hannah made no effort to temper the severity of a forceful response.

26. Plaintiff unnecessarily suffered pain and death as a direct and proximate result of the force used by Defendants Kasbaum, Lee, Storey, and Hannah.

27. In using force against Plaintiff as set forth above, Defendants Kasbaum, Lee, Storey, and Hannah were acting under color of state law.

28. The acts in which Defendants Kasbaum, Lee, Storey, and Hannah each engaged were incidental to some service being performed for their employers.

29. Alternatively, the acts in which Defendants Kasbaum, Lee, Storey, and Hannah each engaged arose out of an emotional response to actions being taken for their employers.

30. Plaintiff is entitled to the recovery of damages in this case as a result of the forgoing acts and omissions on the part of Defendants Kasbaum, Lee, Storey, and Hannah.

WHEREFORE, for her First Cause of Action, Plaintiff Barbara Barrick prays that this Court enter judgment in her favor and against Defendants Kasbaum, Lee, Storey, and Hannah, and that it award Plaintiff all available pecuniary and non-economic damages in an amount exceeding $2,000,000.00, or such other specific sum consistent with the evidence that Plaintiff anticipates will be presented in this case. Plaintiff also prays for punitive damages against Defendants Kasbaum, Lee, Storey, and Hannah, prejudgment interest, the recovery from said Defendants of all attorney fees and costs reasonably incurred by Plaintiff in her prosecution of this action, and an award of all other relief (whether legal, equitable, or both) to which Plaintiff may be entitled and/or that this Court deems just and proper.

SECOND CAUSE OF ACTION: FAILURE TO INTERVENE TO PREVENT OR STOP THE USE OF EXCESSIVE FORCE IN VIOLATION OF U.S. CONST., AMEND. IV (42 U.S.C. § 1983)

For her Second Cause of Action, Plaintiff re-alleges and incorporates by reference all of the foregoing paragraphs, and further states:

31. Defendants Kasbaum, Lee, Storey, and Hannah were each present at the scene to witness, and did, in fact, witness, one or more of the remaining three Defendants engaging in the use of unlawful, excessive, and constitutionally unreasonable force upon Decedent Bobby Barrick.

32. Defendants Kasbaum, Lee, Storey, and Hannah each had a realistic opportunity to prevent one or more of the remaining three Defendants from using, or continuing to use, unlawful, excessive, and constitutionally unreasonable force upon Barrick.

33. Nevertheless, Defendants Kasbaum, Lee, Storey, and Hannah each failed to take reasonable steps to protect Barrick from the use of excessive force by one or more of the remaining three Defendants.

34. Plaintiff is entitled to the recovery of damages in this case as a result of the forgoing acts and omissions on the part of Defendants Kasbaum, Lee, Storey, and Hannah.

[Paragraphs 101 to 104 are not transcribed in this sample.]

35. BOCC/MCS failed to adequately train, supervise, and/or control MCS deputies and personnel regarding their obligations under the Fourth Amendment to refrain from using force that is constitutionally excessive, unreasonable, and/or disproportionate under clearly-established Tenth Circuit law.

36. BOCC/MCS failed to adequately train, supervise, and/or control MCS deputies and personnel regarding their obligations under the Fourth Amendment to protect suspects and arrestees from being subjected to constitutionally excessive, unreasonable, and/or disproportionate force at the hands of other law enforcement personnel.

37. A direct and causal link exists between the pain and death unnecessarily suffered by Decedent Bobby Barrick and the failure by BOCC/MCS to adequately train MCS deputies and personnel.

38. Upon information and belief, BOCC/MCS had prior knowledge that the type of constitutional violations addressed hereinabove were a widespread and continuing problem at any agency or entity operated by, and/or under the authority of, McCurtain County Sheriff Kevin Clardy, including the McCurtain County Sheriff's Office and the McCurtain County Jail.

39. BOCC/MCS had actual and/or constructive notice that its actions and/or failures to act, as described herein, were substantially certain to result in the violation of the constitutional rights of anyone arrested, detained, or incarcerated in McCurtain County, including Decedent.

40. Moreover, given the above-described history of constitutional violations, which is lengthy and ongoing, the need to provide MCS deputies with more and/or different training was obvious, as was the likelihood that the aforementioned inadequacies would result in violations of the constitutional rights of arrested, detained, or incarcerated in McCurtain County, including Decedent.

41. Nevertheless, BOCC/MCS consciously or deliberately chose to disregard the substantial risk of serious harm to which MCS deputies were subjecting those individuals who have been (or would in the future be) arrested, detained, or incarcerated in McCurtain County.

42. BOCC/MCS, through its continued encouragement, ratification, approval, and/or maintenance of the aforementioned policies, customs, and/or practices, in spite of their known and obvious inadequacies and dangers, has been deliberately indifferent to the health and safety of those individuals who have been (or would in the future be) arrested, detained, or incarcerated in McCurtain County, including Decedent.

43. As a direct and proximate result of the aforementioned customs, policies, and/or practices, Decedent suffered pain, injury, and death, as alleged herein, entitling Plaintiff to recover damages.

WHEREFORE, premises considered, Plaintiff Barbara Barrick prays for judgment against Defendants Board of County Commissioners of McCurtain County, Oklahoma, and McCurtain County Sheriff Kevin Clardy for all available damages (including pecuniary and non-economic damages) in an amount exceeding $2,000,000.00, or such other specific sum consistent with the evidence that Plaintiff anticipates will be presented in this case. Plaintiff also prays for pre-judgment interest, attorney fees, and the costs of this action, to be taxed against said Defendants, along with an award of all other relief (whether legal, equitable, or both) to which Plaintiff may be entitled and/or that the Court deems just and proper.

Respectfully submitted,

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